

## 24NNCV05478 24NNCV05478

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 24NNCV05478 Hearing Date: August 7, 2026 Dept: D

### TENTATIVE RULING

Calendar: 9

Date: August 7, 2026

Case No: 24NNCV05478 Trial Date: Not yet set

Case Name: Mageno v. LKATEE Collective, Inc., et al.

### MOTION TO QUASH

[CCP § 418.10]

Moving Party: Specially Appearing Defendant, OFD America, LLC

Responding Party: Plaintiff, Perla Mageno

### RELIEF REQUESTED:

Quash service of summons and complaint as to OFD America, LLC.

CAUSES OF ACTION: from Complaint

1) Violations of the Americans with Disabilities Act

2) Violations of the Unruh Civil Rights Act

## SUMMARY OF FACTS:

Plaintiff Perla Mageno ("Plaintiff") is a visually-impaired and legally blind person who requires screen-reading software ("SRS") to read website content using a computer. Plaintiff alleges that defendant Lkatee Collective, Inc. ("Lkatee") fails to operate its website, [www.oldferrydonut.us](http://www.oldferrydonut.us), to be fully accessible to, and independently usable by, Plaintiff and other blind or visually-impaired people. Plaintiff alleges that during separate visits to the website, Plaintiff encountered multiple access barriers which denied Plaintiff full and equal access to the facilities, goods, and services offered to the public and made available to the public on Lkatee's website. Plaintiff alleges that due to the widespread access barriers Plaintiff encountered on Lkatee's website, Plaintiff has been deterred from obtaining full and equal access to the website.

## ANALYSIS:

"Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant." (AO Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202 [internal citations omitted].) "To establish personal jurisdiction, compliance with statutory procedures for service of process is essential." (Kremerman v. White (2021) 71 Cal.App.5th 358, 371.) Defendant's knowledge of the action does not dispense with statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" may move "to quash service of summons on the ground of lack of jurisdiction of the court over him or her" that results from lack of proper service. (CCP, § 418.10, subd. (a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (CCP, § 412.20, subd. (a)(3).)

Once a challenge to a court's personal jurisdiction is filed, "the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence. This may be done through presentation of declarations, with opposing declarations received in response." (CenterPoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1118 (citing Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568).) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

OFD America, LLC ("OFD") argues that the summons and complaint were not properly served through personal service or substituted service.

"A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery." (CCP, § 415.10, sub. (a)(1).) "In lieu of personal delivery..., a summons may be served by leaving a copy of the summons and complaint during usual office hours in the person's office or, if no physical address is known, at the person's usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (CCP, § 415.20, subd. (a).)

For corporations, personal service can be issued upon the "agent for service of process" or the "president, chief executive officer, or other head of a corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process." (CCP, §§ 416.10 subds. (a)-(b).) "Service is effected by delivering a copy of the summons and a copy of the complaint to one of these persons by a method of service specified in California Code of Civil Procedure § 413.10." (CCP, § 416.10 [Comment – Judicial Council].) Service on an employee who lacks authority is invalid. (See Summers v. McClanahan (2006) 140 Cal.App.4th 403, 414.)

OFD's designated address for service of process on file with the California Secretary of State is 9465 Garden Grove Boulevard, Suite 200, Garden Grove, California 92844. (Seo Supp. Decl., Ex. B.) On February 11, 2026, Plaintiff's process server attempted personal service at that address but was unsuccessful. (Fitzgerald Decl., Ex. B.) The process server's declaration of due diligence states "No such company or agent here." (Fitzgerald Decl., Ex. B.)

Plaintiff purports to have subsequently served OFD by substituted service on March 5, 2026, by leaving the summons and complaint with "EJ Tank – Person/Employee in Charge" at 6920 Beach Blvd., #K130, Buena Park, CA 90621. (Fitzgerald Decl., Ex. B.) However, Plaintiff's proof of service identifies Young Woo Seo as OFD's "agent for service." (Fitzgerald Decl., Ex. B.) EJ Tank has never been one of OFD's officers or otherwise authorized to accept service of process for OFD. (Seo Decl., ¶ 3.) OFD further asserts that the Buena Park storefront is one of its many franchisee retail locations and is not OFD's office or usual place of business. (Seo Supp. Decl., ¶¶ 5-6.) OFD affirms that the Garden Grove address listed with the California Secretary of State is the true and correct address for OFD's agent for service of process. (Seo Supp. Decl., ¶ 3.)

The Court finds that Plaintiff failed to properly serve the summons and complaint on OFD. First, the parties dispute whether Plaintiff's single attempt at personal service satisfied the reasonable diligence requirement necessary to permit substituted service. The Code of Civil Procedure contains no requirement that a plaintiff personally serve an entity defendant before resorting to substituted service. Code of Civil Procedure section 415.20, subdivision (a), notes that "[i]n lieu of personal delivery of a copy of the summons and complaint to the person to be served...", a plaintiff may resort to substituted service. OFD does not cite any case to support its argument that a plaintiff must first attempt to personally serve a corporate defendant with reasonable diligence before substituted service. Accordingly, OFD's argument that Plaintiff's single attempt at personal service did not constitute reasonable diligence, and that substituted service was therefore improper, fails.

However, Plaintiff's attempt at substituted service does not meet the statutory requirements. Plaintiff failed to serve OFD at OFD's usual place of business or to a person listed as authorized or with authority to accept service of process. Service on an employee who lacks authority is invalid. (Summers, supra, 140 Cal.App.4th at p. 414.) Therefore, Plaintiff's attempt at substituted service was insufficient.

Thus, the motion is GRANTED.

RULING:

Specially Appearing Defendant OFD America, LLC's Motion to Quash is GRANTED.

The service of summons on OFD America, LLC is quashed.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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